

Judge Stump's judicial act of approving Defendant Ora McFarlin's petition was undertaken with subject matter jurisdiction residing in him. Having such jurisdiction, he determined that he had jurisdiction over the persons involved. His jurisdiction over the subject matter gave him the power and the duty to decide. Whether the decision was right or wrong, he is under the law granted immunity.

CONCLUSION

The judgment of the District Court should be affirmed.

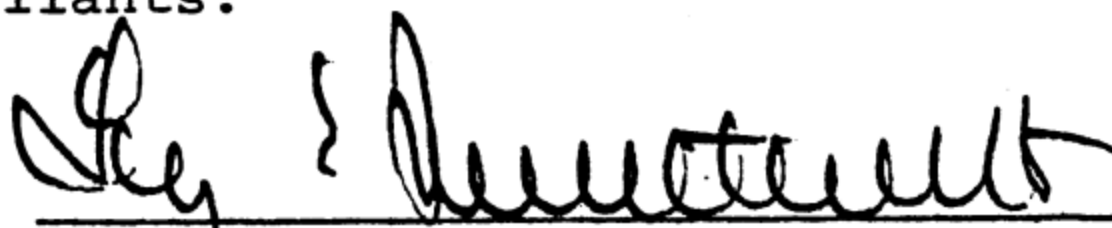
Respectfully submitted,



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September 29th, 1976

CERTIFICATE OF SERVICE

Two copies of the foregoing Brief of Defendant-Appellee Harold D. Stump were mailed on September 29th, 1976, to Richard H. Finley, 124 East Rush Street, Kendallville, Indiana 46755, attorney for Plaintiffs-Appellants.



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